

Consulting services for Technical Assistance program

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Request for Expressions of Interest

Purpose: Long-term Technical Assistance program to assist the Bangladesh Infrastructure Finance Fund Limited (BIFFL) in the implementation of a green credit line facility and in strengthening BIFFL's climate finance strategy and management of E&S risks as well as internal control and compliance

Client: Bangladesh Infrastructure Finance Fund Limited (BIFFL)

Funding Partner: Agence Française de Développement (AFD)

Location: Bangladesh – Dhaka

Contract duration: Three years (2023-2026)

With the technical and financial support of:



Issued on 24 August 2022

BANGLADESH**CONSULTING SERVICES****Expressions of Interest****Background**

As one of the most vulnerable countries to climate change, Bangladesh entered into the Paris Agreements with the ambition of being an example of sustainable development. The first master plan for energy efficiency and control (Energy Efficiency & Conservation - EE&C) sets the objective of reducing the country's energy intensity (i.e. the ratio of national energy consumption to GDP) 15% in 2020 and 20% in 2030 (compared to the 2013 level, considered as the BAU reference level). Investments in renewable energy and energy efficiency therefore remain a priority, and efforts to finance these investments must be continued despite the current difficult period.

As a contribution to the transition of Bangladesh's economy towards a "greener" economy, a credit line of 50 million euros has been granted by the Agence Française de Développement (AFD) to the Government of Bangladesh (GoB) and retroceded to BIFFL. This credit line aims at financing investments in the fields of energy efficiency (for 70 to 80% of the line of credit), the renewable energy generation, mainly in rural areas (for 20 to 30% of the line of credit) and women's entrepreneurship (support the deployment of the BIFFL special program WEDU).

In order to fulfil the objectives of the credit line Project CBD 1031, a Technical Assistance Facility (TAF) will be made available through a grant to the GoB, on-granted at 100 % to BIFFL. The Technical Assistance will support the implementation of the credit line facility and provide capacity-building activities to strengthen BIFFL's climate finance strategy and management of E&S risks as well as internal control and compliance.

Activities organized and financed under the TAF shall be centered on the components described below.

Objective of the Request for Expressions of Interest and scope of work

The Services of the consultant shall consist of the following activities :

Component A: Support to the eligible investments portfolio preparation

This component will be dedicated to the identification and preparation of eligible investments. In close coordination with BIFFL's team as well as their clients, activities will include support to:

- Identification of eligible investments
- Analysis of the economic & technical eligibility of subprojects
- Preparation of financial applications
- Definition and listing of eligible types of investments (for each industry sectors) for small investments (< EUR 3M)
- Feasibility studies and energy audits.

Component B: Capacity Building on climate finance, E&S risks and ICC management

This component will support BIFFL in implementing a climate financing strategy and the Environmental and Social Action Plan (as described in the Credit Facility Agreement), as well as the Internal Control and Compliance (ICC) Action Plan (as defined in the Special BIFFL ICC Audit). Those action plans mainly consist in:

1. E&S management

- Implementation of the Environment and Social Management System (ESMS) of BIFFL
 - E&S internal training program
 - Application of appropriate E&S diligences on the subprojects
 - Implementation of an internal gender policy
 - Support to developing monitoring indicators, compliance and reporting format for submitting E&S annual reports
2. Climate Finance
 - Sensitization actions on the climate risk among BIFFL staff
 - Support to the integration of the climate change issue in the strategy of BIFFL
 - Support in orienting BIFFL's financing offer towards "adaption" projects
 3. ICC management
 - Support in the implementation of the Internal Control and Compliance Action Plan

Component C: Communication and promotion of the subprojects

This component aims at supporting BIFFL in promoting the project activities across the country (especially toward project's stakeholders) as well as in learning and disseminating the best practices. This will be achieved through the organization of:

- product/project launching events
- promotional national/international workshops or seminars
- a reach-out program
- workshops to capitalize on good practices

Component D: Administration, Monitoring and Evaluation of the Credit Facility

This component will encompass the support to the following activities:

- Update and adjustment of the Operational Manual
- Monitoring and control of the investments in the field (including a quarterly report to the administrative and regulatory authorities.
- Annual reporting on the Credit Facility and annual audits to verify the use of funds

The **REOI** for this assignment can also be found at the following website: <https://biffl.org.bd/e-tender/>

Other tasks not presented here may be included in the Request for Proposals transmitted to shortlisted consultants.

The Consultant will be an international consulting firm or a group of firms of a global, regional and local expertise with local-based support capacity and shall be able to demonstrate:

1. a know-how in the design and the management of long-term Technical Assistance and capacity building programmes;
2. a strong background in strategy and finance advisory service and an extensive experience in working alongside financial institutions, including on E&S risk management issues and internal control and compliance;
3. an internationally renowned expertise in the development and the implementation of climate finance strategies and a knowledge of innovative climate finance tools and solutions;
4. a proven experience in technical evaluation and design of complex bankable projects in renewable energy and energy efficiency.

The Consultant shall have relevant experience in all areas needed for the performance of the assignment as described above, including relevant sector and regional experience.

The TAF will be required to work in English as the main language, besides local language. The consultant's team should be able to communicate effectively and submit main deliveries in English.

Expressions of Interest's selection

BIFFL hereby invites Applicants to show their interest in delivering the consulting Services described above.

This Request for Expressions of Interest is open to consulting firms.

Eligibility criteria to AFD financing are specified in sub-clause 1.3 of the "Procurement Guidelines for AFD-Financed Contracts in Foreign Countries", available online on AFD's website: <http://www.afd.fr>.

Consultants are required to submit the following supporting documents in support of the above-mentioned shortlisting criteria: Forwarding letter with detailed address (i.e. mailing address, telephone, fax, email) and contact person for communication; Registration & Legal documents of the firm(s); JV agreement/letter of intent (if applicable); Firm's brochure; List of similar experience of the firm; Staffing & logistics of the firm;

The Applicant shall submit only one application, either in its own name or as a member of a Joint Venture (JV). If an Applicant (including any JV member) submits or participates in more than one application, those applications shall be all rejected. However, the same Subconsultant may participate in several applications.

If the Applicant is a JV, the expression of interest shall include:

- a copy of the JV Agreement entered into by all members,
- or
- a letter of intent to execute a JV Agreement, signed by all members together with a copy of the Agreement proposal,

In the absence of this document, the other members will be considered as Subconsultants. Experiences and qualifications of Subconsultants are not taken into account in the evaluation of the applications.

The Applicants are requested to submit their Expressions of Interest in English.

Interested Applicants must provide information evidencing that they are qualified and experienced to perform those Services. For that purpose, documented evidence of recent and similar services shall be submitted.

Determination of the similarity of the experiences will be based on:

- The contracts size (over € 400,000) and complexity: The Consultant is to indicate with documentary proof of all the related jobs performed as a consultant, sub-contractor, JV, for the last 7 years that have been successfully and substantially completed and that are similar in size, scope, complexity and methods;
- The nature of the Services: long-term technical assistance, capacity building of financial institutions, detailed technical studies, audits;
- The technical area and expertise: climate finance, energy efficiency, renewable energy, E&S risk management; project finance, internal control & compliance;
- The location: Bangladesh and/or South Asia and/or countries facing similar challenges;

The Client will also take into account for the evaluation of the applications the following items:

- Skills and availability of in-house technical back-up experts provided to the on-site experts;
- Regional representatives and partners;
- Quality assurance procedures and certifications of the consultant.

Among the submitted applications, BIFFL will shortlist a maximum of six (6) Applicants, to whom the Request for Proposals to carry out the Services shall be sent.

Consultants may associate with other firms to enhance their qualifications but should indicate clearly whether the association is in the form of a joint venture and/or a sub-consultancy. In the case of a joint venture, all the partners in the joint venture shall be jointly and severally liable for the entire contract, if selected.

The attention of interested Consultants is drawn to Section 1.3, 1.4, & 1.5 of Guidelines for the Procurement of AFD-Financed Contracts in Foreign Countries (Latest) setting forth the AFD's policy on eligibility, fraud and corruption, and ESHS.

Expressions of Interest's submission

Expression of Interest (EOI) (including appendix 1) must be delivered in a written form (1 original & 3 copies) to the address below (in person, or by registered mail/courier) and a soft copy (maximum 18 MB) of EOI to riyad.hasan@biffl.org.bd by 20 September 2022 at 3:00 PM (Dhaka Time).

S. M. Anisuzzaman

Chief Executive Officer & Project Director

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Contacts

Interested consultants may obtain further information at the email address below during office hours (Sunday to Thursday, 9 am to 4 pm): riyad.hasan@biffl.org.bd

**Appendix to The Request for Expressions of Interest
(To be submitted with the application, signed and unaltered)**

Statement of Integrity, Eligibility and Environmental and Social Responsibility

Reference of the bid or proposal _____ (the "**Contract**")

To: _____ (the "**Contracting Authority**")

1. We recognise and accept that *Agence Française de Développement* ("**AFD**") only finances projects of the Contracting Authority subject to its own conditions which are set out in the Financing Agreement which benefits directly or indirectly to the Contracting Authority. As a matter of consequence, no legal relationship exists between AFD and our company, our joint venture or our suppliers, contractors, subcontractors, consultants or subconsultants. The Contracting Authority retains exclusive responsibility for the preparation and implementation of the procurement process and performance of the contract. The Contracting Authority means the Purchaser, the Employer, the Client, as the case may be, for the procurement of goods, works, plants, consulting services or non-consulting services.
2. We hereby certify that neither we nor any other member of our joint venture or any of our suppliers, contractors, subcontractors, consultants or subconsultants are in any of the following situations:
 - 2.1 Being bankrupt, wound up or ceasing our activities, having our activities administered by the courts, having entered into receivership, reorganisation or being in any analogous situation arising from any similar procedure;
 - 2.2 Having been:
 - a) convicted, within the past five years by a court decision, which has the force of *res judicata* in the country where the Contract is implemented, of fraud, corruption or of any other offense committed during a procurement process or performance of a contract (in the event of such conviction, you may attach to this Statement of Integrity supporting information showing that this conviction is not relevant in the context of this Contract);
 - b) subject to an administrative sanction within the past five years by the European Union or by the competent authorities of the country where we are constituted, for fraud, corruption or for any other offense committed during a procurement process or performance of a contract (in the event of such sanction, you may attach to this Statement of Integrity supporting information showing that this sanction is not relevant in the context of this Contract);
 - c) convicted, within the past five years by a court decision, which has the force of *res judicata*, of fraud, corruption or of any other offense committed during the procurement process or performance of an AFD-financed contract;
 - 2.3 Being listed for financial sanctions by the United Nations, the European Union and/or France for the purposes of fight-against-terrorist financing or threat to international peace and security;
 - 2.4 Having been subject within the past five years to a contract termination fully settled against us for significant or persistent failure to comply with our contractual obligations during contract performance, unless this termination was challenged and dispute resolution is still pending or has not confirmed a full settlement against us;
 - 2.5 Not having fulfilled our fiscal obligations regarding payments of taxes in accordance with the legal provisions of either the country where we are constituted or the Contracting Authority's country;

- 2.6 Being subject to an exclusion decision of the World Bank and being listed on the website <http://www.worldbank.org/debar> (in the event of such exclusion, you may attach to this Statement of Integrity supporting information showing that this exclusion is not relevant in the context of this Contract);
 - 2.7 Having created false documents or committed misrepresentation in documentation requested by the Contracting Authority as part of the procurement process of this Contract.
3. We hereby certify that neither we, nor any of the members of our joint venture or any of our suppliers, contractors, subcontractors, consultants or subconsultants are in any of the following situations of conflict of interest:
 - 3.1 Being an affiliate controlled by the Contracting Authority or a shareholder controlling the Contracting Authority, unless the stemming conflict of interest has been brought to the attention of AFD and resolved to its satisfaction;
 - 3.2 Having a business or family relationship with a Contracting Authority's staff involved in the procurement process or the supervision of the resulting Contract, unless the stemming conflict of interest has been brought to the attention of AFD and resolved to its satisfaction;
 - 3.3 Being controlled by or controlling another bidder or consultant, or being under common control with another bidder or consultant, or receiving from or granting subsidies directly or indirectly to another bidder or consultant, having the same legal representative as another bidder or consultant, maintaining direct or indirect contacts with another bidder or consultant which allows us to have or give access to information contained in the respective applications, bids or proposals, influencing them or influencing decisions of the Contracting Authority;
 - 3.4 Being engaged in a consulting services activity, which, by its nature, may be in conflict with the assignments that we would carry out for the Contracting Authority;
 - 3.5 In the case of procurement of goods, works or plants:
 - a) Having prepared or having been associated with a consultant who prepared specifications, drawings, calculations and other documentation to be used in the procurement process of this Contract;
 - b) Having been recruited (or being proposed to be recruited) ourselves or any of our affiliates, to carry out works supervision or inspection for this Contract.
4. If we are a state-owned entity, and to compete in a procurement process, we certify that we have legal and financial autonomy and that we operate under commercial laws and regulations.
5. We undertake to bring to the attention of the Contracting Authority, which will inform AFD, any change in situation with regard to points 2 to 4 here above.
6. In the context of the procurement process and performance of the corresponding contract:
 - 6.1 We have not and we will not engage in any dishonest conduct (act or omission) deliberately intended to deceive others, to intentionally conceal items, to violate or vitiate someone's consent, to make them circumvent legal or regulatory requirements and/or to violate their internal rules in order to obtain illegitimate profit;
 - 6.2 We have not and we will not engage in any dishonest conduct (act or omission) contrary to our legal or regulatory obligations or our internal rules in order to obtain illegitimate profit;
 - 6.3 We have not promised, offered or given and we will not promise, offer or give, directly or indirectly to (i) any Person who holds a legislative, executive, administrative or judicial mandate within the State of the Contracting Authority regardless of whether that Person was nominated or elected, regardless of the permanent or temporary, paid or unpaid nature of the position and regardless of the hierarchical level the Person occupies, (ii) any other Person who performs a public function, including for a State institution or a State-owned company, or who provides a public service, or (iii) any other person defined as a Public Officer by the national laws of the Contracting Authority's country, an undue advantage of

- any kind, for himself or for another Person or entity, for such Public Officer to act or refrain from acting in his official capacity;
- 6.4 We have not promised, offered or given and we will not promise, offer or give, directly or indirectly to any Person who occupies an executive position in a private sector entity or works for such an entity, regardless of the nature of his/her capacity, any undue advantage of any kind, for himself or another Person or entity for such Person to perform or refrain from performing any act in breach of its legal, contractual or professional obligations;
- 6.5 We have not and we will not engage in any practice likely to influence the contract award process to the detriment of the Contracting Authority and, in particular, in any anti-competitive practice having for object or for effect to prevent, restrict or distort competition, namely by limiting access to the market or the free exercise of competition by other undertakings;
- 6.6 Neither we nor any of the members of our joint venture or any of our suppliers, contractors, subcontractors, consultants or subconsultants shall acquire or supply any equipment nor operate in any sectors under an embargo of the United Nations, the European Union or France;
- 6.7 We commit ourselves to comply with and ensure that all of our suppliers, contractors, subcontractors, consultants or subconsultants comply with international environmental and labour standards, consistent with laws and regulations applicable in the country of implementation of the Contract, including the fundamental conventions of the International Labour Organisation (ILO) and international environmental treaties. Moreover, we shall implement environmental and social risks mitigation measures when specified in the environmental and social commitment plan (ESCP) provided by the Contracting Authority.
7. We, as well as members of our joint venture and our suppliers, contractors, subcontractors, consultants or subconsultants authorise AFD to inspect accounts, records and other documents relating to the procurement process and performance of the contract and to have them audited by auditors appointed by AFD.

Name: _____ In the capacity of: _____

Duly empowered to sign in the name and on behalf of¹: _____

Signature: _____

Dated: _____

¹ In case of joint venture, insert the name of the joint venture. The person who will sign the application, bid or proposal on behalf of the applicant, bidder or consultant shall attach a power of attorney from the applicant, bidder or consultant.